

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
September 14, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2020-01166856 Nilchian vs. Organic Pastures Dairy Company LLC	The tentative ruling is to continue the Final Report Hearing to November 23, 2026 at 1:30 p.m. to confirm that the administrator has distributed the attorney's fees and costs and administrator fees, that the amount of the uncashed checks after the check-cashing deadline has been delivered to the cy pres recipient, that the Administrator's work is complete, and that the court's file

		thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The court notes that because a portion of the Judgment is being paid to a nonparty, National Consumer Law Center, plaintiff must submit an Amended Judgment that complies with CCP §§384(b) and 384.5, and Gov. Code §68520. Specifically, the Amended Judgment must state how much money is being paid to the nonparty, including any interest that accrued on the funds, and, if known, the purpose of the distribution to the nonparty and how it plans to expend the funds. Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2021-01204377 Sgontz vs. Crossmark, Inc.	The tentative ruling is to continue the Final Report Hearing to November 23, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiffs are ordered to give notice of this ruling to Defendant.
3	30-2021-01207569 Ascencio vs. Toshiba America Business Solutions, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
4	30-2023-01354711 Huber vs. Evolve Dental Technologies, Inc.	The tentative ruling is to continue the Final Report Hearing to July 26, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date.